



Code: AC-AR
Adopted: 7/21/21

Discrimination Complaint Procedure

Complaints regarding discrimination or harassment, on any basis protected by law, shall be processed in accordance with the following procedures:

Step 1 Complaints may be oral or in writing and should be filed with the administrator/principal. Any staff member that receives a written or oral complaint shall report the complaint to the administrator/principal. Oral complaints received shall be reduced to writing by the staff member receiving the complaint and confirmed with the person making the complaint immediately.

The administrator/principal or a designee shall investigate and determine the action to be taken, if any, and reply in writing to the complainant within 10 school days of receipt of the complaint.

If the complainant is not satisfied with a decision reached in this step by the administrator/principal, the complainant may submit an appeal to the Board as outlined in Step 3.

Step 2 If the complainant wishes to appeal the decision of the administrator's/principal's designee, the complainant may submit a written appeal to the administrator/principal within five school days after receipt of the designee's response to the complaint.

The administrator/principal shall review the designee's decision within five school days and may meet with all parties involved. The administrator/principal will review the merits of the complaint and the designee's decision. The administrator/principal will respond in writing to the complainant within 10 school days.

Step 3 If the complainant is not satisfied with the decision of the administrator/principal, a written appeal may be filed with the HCCS Board (board@hopeccs.org) within five school days of receipt of the administrator/principal's response in Step 2. The Board may decide to hear or deny the request for appeal at a Board meeting. If the Board decides to hear the appeal, the Board may meet with the concerned parties and their representative at the next regular or special Board meeting. The Board's decision will address each allegation in the complaint and contain the reasons for the Board's decision. A copy of the Board's decision shall be sent to the complainant in writing within 10 days of this meeting.

If the Board decides not to hear the appeal the administrator/principal's decision is final.

If the director of operations is the subject of the complaint, the complaint should be referred to the administrator/principal and start at step 2. If the administrator/principal is the subject of the complaint the individual may start at Step 3 and file a complaint with the Board chair. The Board may refer the investigation to a third party.

Complaints against the Board as a whole or against an individual Board member may start at Step 3, should be submitted to the Board chair, and may be referred to counsel. Complaints against the Board

chair may start at Step 3 and should be referred directly to the HCCS Board (board@hopeccs.org). The Board may refer the investigation to a third party.

Timelines may be extended based upon mutual consent of the HCCS and the complainant in writing.

Appeal Process

A decision reached by this HCCS board for a complaint that alleges a violation of OAR 581-021-0047 (Prohibition against using Native American mascots) may be appealed to Oregon Department of Education (ODE) under OAR 581-002-0001 - 581-002-0023.

A final decision reached by the HCCS board for a complaint that alleges a violation of Oregon Revised Statute (ORS) 659.850 or Oregon Administrative Rule (OAR) 581-021-0045 or OAR 581-021-0046 (Discrimination), is recognized as the final decision regarding this complaint by the Board of the Beaverton School District. A final decision may be appealed to ODE under OAR 581-002-0001 - 581-002-0023.

Hope Chinese Charter School
DISCRIMINATION COMPLAINT FORM

Name of Person Filing Complaint Date School or Activity

Student/Parent ☐ Employee ☐ Job applicant ☐ Other ☐ _____

Subject of complaint:

- | | | |
|--|---|--|
| ☐ Race | ☐ Marital status | ☐ Income level |
| ☐ Color | ☐ Familial status | ☐ Athletic ability |
| ☐ Religion | ☐ Economic status | ☐ Proficiency in English |
| ☐ Sex | ☐ Veterans' status | ☐ language |
| ☐ National or ethnic origin | ☐ Age | ☐ Discriminatory use of a |
| ☐ Mental or physical | ☐ Sexual orientation | ☐ Native American mascot |
| disability | ☐ Pregnancy | ☐ Other _____ |

Specific complaint: (Please provide detailed information including names, dates, places, activities and results of discussion.)

Who should we talk to and what evidence should we consider?

Suggested solution/resolution/outcome:

This complaint form should be mailed or submitted to the administrator/principal.

Direct complaints related to educational programs and services may be made to the U.S. Department of Education, Office for Civil Rights. Direct complaints related to employment may be filed with the Oregon Bureau of Labor and Industries, Civil Rights Division or the U.S. Department of Labor, Equal Employment Opportunities Commission.



Code: ACA-AR
Revised/Reviewed: 7/21/21

ADA Grievance Procedure

The compliance officer is responsible for coordinating HCCS's efforts to comply with the Americans with Disabilities Act of 1990 and the Americans with Disabilities Act Amendments Act of 2008 ("ADA"). The compliance officer shall be a neutral party having had no involvement in the complaint presented.

Any complaint shall be presented in writing to the compliance officer or the administrator/principal within 180 days from date of alleged discrimination. It must include the following:

- The name and address of the individual or the representative filing the complaint;
- The description of the alleged discriminatory action in sufficient detail to inform HCCS of the nature and date of the alleged violation;
- A signature by the complainant or by someone authorized to do so on the complainant's behalf;
- The identification (by name, if possible) of the alleged victims of the discrimination for any complaint filed on behalf of classes or third parties.

Step 1 The compliance officer shall thoroughly investigate the complaint, notify the person who has been accused of discriminating, permit a response to the allegation and arrange a meeting to discuss the complaint with all concerned parties within 10 working days after receipt of the written complaint, if deemed necessary. The compliance officer shall give a written answer to the complainant within 15 working days after receipt of the written complaint.

Step 2 If the complainant is not satisfied with the answer of the compliance officer, the complainant may submit a written appeal to the administrator/principal indicating with particularity the nature of disagreement with the answer and reason underlying such disagreement. Such appeal must be filed within 10 working days after receipt of the compliance officer's answer. The administrator/principal shall arrange a meeting with the complainant and other affected parties, if requested by the complainant, at a mutually agreeable time to discuss the appeal.

The administrator/principal shall give a written answer to the complainant's appeal within 10 working days.

Step 3 If the complainant is not satisfied with the answer, an appeal to HCCS Board may be filed within 10 working days after receipt of the Step 3 answer. The Board shall, within 20 working days, conduct a hearing at which the complainant shall be given an opportunity to present the complaint. The Board shall give a written answer to the complainant within 10 working days following completion of the hearing.

If the complainant is not satisfied with the decision of the HCCS Board, a complaint may be filed with the Coordination and Review Section, Civil Rights Division, U.S. Department of Justice (student complaints) or the U.S. Department of Labor, Equal Employment Opportunity Commission or Oregon Bureau of Labor and Industries (employment complaints).

Individuals may initiate complaint procedures and/or civil actions with or without first complying with local complaint procedures.



Code: ACA
Adopted: 7/21/21

Americans with Disabilities Act

HCCS, in compliance with the Americans with Disabilities Act of 1990 and the Americans with Disabilities Act Amendment Act of 2008 (“ADA”), is committed to maintaining employment practices, services, programs and activities that provide equity to qualified individuals with disabilities.

HCCS will provide reasonable accommodations for the known disabilities, subject to the ADA, of all applicants and current employees in all employment application procedures; hiring, advancement or discharge; employee compensation; job training; other terms, conditions and privileges of employment upon request and advance notice.

A reasonable accommodation must not present an undue hardship for HCCS, be unduly costly, extensive or disruptive; nor present a direct threat to the health or safety of the individual or others in the workplace.

HCCS services, programs and activities will be accessible and usable by qualified individuals with disabilities, consistent with Section 504 of the Rehabilitation Act of 1973 and the ADA. Accessibility may be achieved through nonstructural as well as structural methods.

In order to achieve equal access, HCCS will make available appropriate auxiliary aids and services that promote effective communications. Primary consideration will be given to the request of individuals with disabilities in the selection of appropriate aids and services. Final determination will be made by the Board. Auxiliary aids and services determinations will be based on availability, effectiveness and financial or administrative burden to HCCS.

The HCCS Board directs the administrator/principal to develop and implement an appropriate plan that provides for HCCS compliance with ADA, including the appointment of an ADA compliance officer and the establishment of a process for the investigation and prompt and equitable resolution of any complaint regarding noncompliance.

Retaliation is prohibited against anyone who files a complaint of discrimination, participates in an Office of Federal Contract Compliance Program proceeding or otherwise opposes discrimination federal or state laws.

END OF POLICY

Legal Reference(s):

Rehabilitation Act of 1973, 29 U.S.C. §§ 503, 791, 793-794 (2012).
Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213; 29 C.F.R. Part 1630 (2006); 28 C.F.R. Part 35 (2006).
Chevron U.S.A. Inc. v. Echazabal, 536 U.S. 73 (2002).
Americans with Disabilities Act Amendments Act of 2008.

Cross Reference(s):

AC - Nondiscrimination
BD/BDA - Board Meetings
GAB - Job Descriptions
GBA - Equal Employment Opportunity
GBEA - Workplace Harassment
JB - Equal Educational Opportunity



Code: ACB-AR
Revised/Reviewed: 12/16/20

Bias Incident Complaint Procedure

The term “bias incident” is defined in policy. Persons impacted by a bias incident shall be defined broadly to include individuals at whom an incident was directed as well as students in the larger school community likely to be impacted by the incident.¹

- Step 1: When a staff member learns of a potential bias incident, the staff member will prioritize the safety and well-being of all persons impacted and without unreasonable delay report the incident to the school principal or administrator.
- Step 2: The school principal/administrator shall acknowledge receipt of the complaint and investigate any complaint of a bias incident. Responding staff will recognize the experience of all persons impacted, acknowledge the impact, commit to taking immediate action, and prevent further harm against those persons impacted from taking place. Redirection procedures, if any, will include:
- Educational components that address the history and impact of hate;
 - Procedural components to ensure the safety, healing, and agency of those impacted by hate;
 - Accountability and transformation for people who cause harm; and
 - Transformation of the conditions that perpetuated the harm.

The school principal/administrator must consider whether the behavior implicates other public charter school policies or civil rights laws, and if so, respond accordingly.

The school principal/administrator will determine responsibility within 10 days of receiving the complaint.

All persons impacted will be provided with information relating to the investigation and the outcome of the investigation. At a minimum, the information provided must include:

- That an investigation has been initiated;
- When the investigation has been completed;
- The findings of the investigation and the final determination based on those findings; and

¹ The term “complainant” in this administrative regulation includes persons filing formal complaints and persons reporting bias incidents, regardless of whether the complainant is a victim. Similarly, the term “complaint” includes any report, information or complaint.

- Actions taken with the person or persons who committed the harassing behavior to remedy the behavior and prevent reoccurrence when the actions relate directly to a person impacted by the event.

If any of the above information cannot be shared, a citation to the law prohibiting release and an explanation of how that law applies to the current situation will be provided.²

Step 3: If the complainant or respondent is not satisfied with the decision of the school principal/administrator, a written appeal may be filed with the Board within five school days of receipt of the school principal/administrator's response to Step 2. The Board may decide to hear or deny the request for appeal at a Board meeting. The Board may use an executive session if the subject matter qualifies under Oregon law. If the Board decides to hear the appeal, the Board may meet with the concerned parties and their representative at the next regular or special Board meeting. A copy of the Board's final decision shall be sent to the complainant in writing within 30 days of this meeting.

The Board will ensure that the requirements in Steps 1 and 2 (redirection procedures, notice, etc.) are continued to be met through Step 3, as appropriate.

Complaints can be filed with or communicated directly to the school principal/administrator, in which case Step 1 will be skipped. Complaints against the school principal/school principal can be directed to the Board and will begin at Step 3. Complaints against the director of operations can be directed to the Board and will begin at Step 3. Complaints against a Board member(s) can be directed to the Board and will begin at Step 3. If complaints begin later than Step 1, the individuals reviewing the complaint will ensure that all requirements are met.

The complainant, or a parent or guardian of a student who attends HCCS, or a student, is not satisfied after exhausting local complaint procedures, HCCS fails to render a written decision within 30 days of submission of the complaint at any step or HCCS fails to resolve the complaint within 90 days of the initial filing of the complaint, may appeal³ HCCS's final decision to the Deputy Superintendent of Public Instruction under Oregon Administrative Rules (OAR) 581-002-0001 – 581-002-0023.

Complaints may also be filed directly with the U.S. Department of Education Office for Civil Rights.⁴

HCCS administration will develop and implement instructional materials to ensure that all school employees and staff are made aware of this procedure and related practices. The materials will include reporting procedures, educational processes, and possible consequences.

² Refer to policies JOA - Directory Information and JOB - Personally Identifiable Information and public charter school legal counsel for guidance in these situations. Possible laws include, but are not limited to, Title 34 C.F.R. § 99.31 and ORS 342.850.

³ An appeal must meet the criteria found in OAR 581-002-0005(1)(a).

⁴ Complaints must meet criteria as established by law. For more information, visit <http://www.ed.gov/about/offices/list/ocr/complaintintro.html>



Code: ACB
Adopted: 12/16/20

All Students Belong

Hope Chinese Charter School (HCCS) is committed to our mission: Educating for Global Fluency by developing Chinese & English dual-language skills, nurturing cultural adaptability and inspiring excellence for a positive impact in our world. HCCS recognizes and appreciates the value and contribution of every human being, and pledges to encourage and embrace all aspects of diversity, equity, and inclusion. We also recognize and challenge the historical, structural, and systematic forms of racism that continue to threaten the lives of people of color and endanger the communities in which they live.

All students are entitled to a high quality educational experience, free from discrimination or harassment based on perceived race, color, religion, gender identity, sexual orientation, disability or national origin.

All employees are entitled to work in an environment that is free from discrimination or harassment based on perceived race, color, religion, gender identity, sexual orientation, disability or national origin.

All visitors are entitled to participate in an environment that is free from discrimination or harassment based on perceived race, color, religion, gender identity, sexual orientation, disability or national origin.

“Bias incident” means a person’s hostile expression of animus toward another person, relating to the other person’s perceived race, color, religion, gender identity, sexual orientation, disability or national origin, of which criminal investigation or prosecution is impossible or inappropriate. Bias incidents may include derogatory language or behavior directed at or about any of the preceding demographic groups.

“Symbol of hate” means a symbol, image, or object that expresses animus on the basis of race, color, religion, gender identity, sexual orientation, disability or national origin including, the noose, swastika, or confederate flag¹, and whose display:

1. Is reasonably likely to cause a substantial disruption of or material interference with school activities; or
2. Is reasonably likely to interfere with the rights of students by denying them full access to the services, activities, and opportunities offered by a school.

HCCS prohibits the use or display of any symbols of hate on school grounds or in any school-sponsored program, service, school or activity that is funded in whole or in part by monies appropriated by the Oregon Legislative Assembly, except where used in teaching curriculum that is aligned to the Oregon State Standards.

¹ While commonly referred to as the “confederate flag,” the official name of the prohibited flag is the Battle Flag of the Armies of Northern Virginia.

In responding to the use of any symbols of hate, HCCS will use non-disciplinary remedial action whenever appropriate.

HCCS prohibits retaliation against an individual because that person has filed a charge, testified, assisted or participated in an investigation, proceeding or hearing; and further prohibits anyone from coercing, intimidating, threatening or interfering with an individual for exercising any rights guaranteed under state and federal law.

Nothing in this policy is intended to interfere with the lawful use of HCCS facilities pursuant to a lease or license.

HCCS will use administrative regulation ACB-AR - Bias Incident Complaint Procedure to process reports or complaints of bias incidents.

END OF POLICY

Legal Reference(s):

[ORS 659.850](#)
[ORS 659.852](#)

[OAR 581-002-0005](#)
[OAR 581-022-2312](#)

[OAR 581-022-2370](#)

Tinker v. Des Moines Indep. Cmty. Sch. Dist., 393 U.S. 503 (1969).
Dariano v. Morgan Hill Unified Sch. Dist., 767 F.3d 764 (9th Cir. 2014).
State v. Robertson, 293 Or. 402 (1982).

Cross Reference(s):

AC - Nondiscrimination

GBEA - Workplace Harassment

GBNA - Hazing, Harassment, Intimidation, Bullying, Menacing, or Cyberbullying – Staff

GBN/JBA - Sexual Harassment

JBA/GBN - Sexual Harassment

JFCF - Hazing, Harassment, Intimidation, Bullying, Menacing, Cyberbullying, Teen Dating Violence, or Domestic Violence – Student



Code: AC
Adopted: 7/21/21

Nondiscrimination

HCCS prohibits discrimination and harassment on any basis protected by law, including but not limited to, an individual's perceived or actual race¹, color, religion, sex, sexual orientation², national or ethnic origin, marital status, age, mental or physical disability, pregnancy, familial status, economic status, or veterans' status, or because of the perceived or actual race, color, religion, sex, sexual orientation, national or ethnic origin, marital status, age, mental or physical disability, pregnancy, familial status, economic status, or veterans' status of any other persons with whom the individual associates.

HCCS may not limit student admission based on ethnicity, national origin, race, religion, disability, sex, sexual orientation, income level, proficiency in English language, whether a student has an individualized education program (IEP) or the terms of that IEP, or athletic ability except as authorized under Oregon Revised Statute (ORS) 338.125(3)(d). HCCS may limit admission to students within a given grade level.

HCCS prohibits discrimination and harassment in, but not limited to: employment, assignment and promotion of personnel; educational opportunities and services offered students; student assignment to the school and classes; student discipline; location and use of facilities; educational offerings and materials; and accommodating the public at public meetings.

HCCS prohibits retaliation and discrimination against an individual who has opposed any discrimination act or practice or because that person has filed a charge, testified, assisted or participated in an investigation, proceeding or hearing, and further prohibits anyone from coercing, intimidating, threatening or interfering with an individual for exercising the rights guaranteed under state and federal law.

The HCCS Board encourages staff to improve human relations within the school, to respect all individuals, and to establish channels through which school community members can communicate their concerns to HCCS administration and the HCCS Board.

The administrator/principal shall appoint individuals at HCCS to contact on issues concerning the Americans with Disabilities Act, Section 504 of the Rehabilitation Act, Titles VI and VII of the Civil Rights Act, Title IX of the Education Amendments Act, and other civil rights or discrimination issues, and notify students, parents, and employees with their names, office addresses, and phone numbers.

¹ Includes discriminatory use of a Native American mascot pursuant to OAR 581-021-0047.

² "Sexual orientation" means an individual's actual or perceived heterosexuality, homosexuality, bisexuality or gender identity, regardless of whether the individual's gender identity, appearance, expression or behavior differs from that traditionally associated with the individual's sex at birth.

The HCCS Board will adopt and HCCS will publish complaint procedures providing for prompt and equitable resolution of complaints from students, employees, and the public, and such procedures will be available at the HCCS’s school office and available on the home page of the website.

END OF POLICY

Legal Reference(s):

ORS 174.100	ORS 659.870	ORS 659A.309
ORS 192.630	ORS 659A.003	ORS 659A.321
ORS 326.051(1)(e)	ORS 659A.006	ORS 659A.409
ORS 338.115	ORS 659A.009	
ORS 338.125(2)-(3)	ORS 659A.029	OAR 581-021-0045
ORS 408.230	ORS 659A.030	OAR 581-021-0046
ORS 659.805	ORS 659A.040	OAR 581-021-0047
ORS 659.815	ORS 659A.103 - 659A.145	OAR 839-003
ORS 659.850 - 659.860	ORS 659A.230 - 659A.233	
ORS 659.865	ORS 659A.236	

Age Discrimination Act of 1975, 42 U.S.C. §§ 6101-6107 (2018).

Age Discrimination in Employment Act of 1967, 29 U.S.C. §§ 621-633 (2018); 29 C.F.R Part 1626 (2019).

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12133 (2012); 29 C.F.R. Part 1630 (2019); 28 C.F.R. Part 35 (2019).

Equal Pay Act of 1963, 29 U.S.C. § 206(d) (2018).

Rehabilitation Act of 1973, 29 U.S.C. §§ 791, 793-794 (2018); 34 C.F.R. Part 104 (2019).

Title IX of the Education Amendments of 1972, 20 U.S.C. §§ 1681-1683 (2018); Nondiscrimination on the Basis of Sex in Education Programs or Activities Receiving Federal Financial Assistance, 34 C.F.R. Part 106 (2019).

Title VI of the Civil Rights Act of 1964, 42 U.S.C. § 2000d (2012); 28 C.F.R. §§ 42.101-42.106 (2019).

Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e (2012); 29 C.F.R. § 1601 (2019).

Wygant v. Jackson Bd. of Educ., 476 U.S. 267 (1989).

The Vietnam Era Veterans’ Readjustment Assistance Act of 1974, 38 U.S.C. § 4212 (2018).

Genetic Information Nondiscrimination Act of 2008, 42 U.S.C. § 2000ff-1 (2012); 29 C.F.R. Part 1635 (2019).

Cross Reference(s):

ACA - Americans with Disabilities Act

ACB - All Students Belong

GBA - Equal Employment Opportunity

GBEA - Workplace Harassment

JB - Equal Educational Opportunity

KL - Public Complaints



Code: BBAA
Adopted: 7/21/21

Individual Board Member's Authority and Responsibilities

An individual HCCS Board member exercises the authority and responsibility of the board member's position when the HCCS Board is in legal session only.

A HCCS Board member has the authority to act in the name of the HCCS Board when authorized by a specific Board motion. The affirmative vote of the majority of the Board members present is required to transact any business. The act of a majority of the Board members present in person at a meeting at which a quorum is present shall be the act of the Board of directors, unless the act of a greater number is required by law or by the HCCS bylaws.

A HCCS Board member has the right to express personal opinions. When expressing such opinions in public, the Board member must clearly identify the opinions as their own.

Members will be knowledgeable of information requested through Board action, supplied by the administrator/principal, gained through attendance at HCCS activities and through professional HCCS Board activities.

Members of the HCCS Board will adhere to the following in carrying out the responsibilities of membership:

1. Requests for Information

Any individual Board member who desires a copy of an existing written report or survey prepared by the school administrative staff will make such a request to the administrator/principal. A copy of the material may be made available to each member of the HCCS Board. Requests for the generation of reports or information, which requires additional expense to the school, must be submitted to the Board for consideration.

2. Requests for Legal Opinions

A request for a legal opinion by a HCCS Board member, must be approved by a majority vote of the HCCS Board before the request is made to legal counsel. If the legal opinion sought involves the administrator's/principal's employment or performance, the request should be made to the Board chair. Legal counsel is responsible to the HCCS Board.

3. Action on Complaints or Requests Made to Board Members

When HCCS Board members receive complaints or requests for action from staff, students or members of the public, the Board members will direct the staff, students and members of the public

to the complaint policy Board policy KL - Public Complaints. Such information will be conveyed to the administrator/principal.

4. Board Member's Relationship to Administration

Individual HCCS Board members will be informed about the school's educational program, may visit the school or other school facilities to gain information, and may request information from the administrator/principal. No individual Board member may direct the administrator/principal to action without Board authorization. Board members will not intervene in the administration of the school.

5. Contracts or Agreements

All contracts of the HCCS must be approved by the HCCS Board, or as delegated to the administrator/principal, before an order can be drawn for payment. If a contract is made without authority of the Board, the individual making such contract shall be personally liable.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(2\)](#)

Cross Reference(s):

BHD - Board Member Compensation and Expense Reimbursement



Code: BBA
Adopted: 7/21/21

Board Powers and Duties

HCCS by-laws delegate to the HCCS Board responsibility for the conduct and governance of programs and services in HCCS. The general powers granted to the Board are:

1. Legislative or Rule-Making Authority

In regular or special public meetings, after open discussion and after members' votes are recorded, the HCCS Board will establish rules or policy to govern the conduct of its members and the proceedings of the Board.

The Board shall establish policies for governing the programs and services of HCCS consistent with State Board of Education rules and with local, state and federal laws, as applicable.

The Board is responsible for providing adequate and direct means for keeping informed about the needs and wishes of the public and for keeping local community patrons informed about HCCS.

2. Judicial Authority

As provided by law, policy or contract, the HCCS Board acts as a fact-finding body or a court of appeal for staff members, students and the public when issues involve Board policies or agreements and their implementation, and when the Board must determine the rights, duties or obligations of those who address the Board.

3. Executive/Administrative Authority

The HCCS Board will appoint an administrator/principal delegated to establish administrative regulations to implement Board policy and goals. The Board will evaluate the administrator's/principal's performance.

The HCCS Board may establish academic and financial goals for HCCS and evaluate the administrator's/principal's implementation of those goals.

The HCCS Board will oversee HCCS's financial affairs by authorizing, appropriating and adopting budgets as allowed by law, to provide for program operation and maintenance or acquisition of HCCS property.

The HCCS Board will authorize the administrator/principal to approve payment on all contracts and business transactions of HCCS in accordance with HCCS board policies and charter agreement on purchasing and budget requirements. The HCCS Board will provide for an annual audit of HCCS's assets.

The HCCS Board will establish salaries and salary schedules, other terms and conditions of employment, and personnel policies for HCCS employees.

The HCCS Board will establish the days of the year and the hours of the day when school and its programs will be in session.

END OF POLICY

Legal Reference(s):

[ORS 192.630](#)

[ORS 243.656](#)

[ORS Chapters 279A, 279B](#) and [279C](#)

[ORS 294.305](#) to -294.565

[ORS 338.115\(2\)](#)

[ORS Chapter 339](#)

[ORS 339.250](#)

[ORS 339.315](#) to -339.327

[ORS 339.351](#) to -339.364

[ORS 339.370](#) to -339.400

[ORS 339.866](#) to -339.873

[ORS 339.883](#) to -339.885

Cross Reference(s):

DJ - Purchasing



Code: BBFA
Adopted: 7/21/21

Board Member Ethics and Conflicts of Interest

No HCCS Board member will use the official position or office of HCCS Board member to obtain personal financial benefit or to avoid financial detriment for self, relatives or household members, or for any business with which the Board member, a household member or a relative is associated.

This prohibition does not apply to any part of an official compensation package, honorarium allowed by Oregon Revised Statute (ORS) 244.042, reimbursement of expenses, or unsolicited awards of professional achievement. Further, this prohibition does not apply to gifts from one without a legislative or administrative interest. Nor does it apply if the gift is under the annual \$50 gift limit from one who has a legislative or administrative interest in any matter subject to the decision or vote of the Board member. HCCS-provided meals at board meetings are acceptable under the reimbursement of expenses exception.

I. Conflicts of Interest

“Business” means any corporation, partnership, proprietorship, enterprise, association, franchise, firm, organization, self-employed individual or any legal entity operated for economic gain. This definition excludes any income-producing tax exempt 501(c) not-for-profit corporation with which a public official or a relative of the public official is associated only as a member or board director or in a non-remunerative capacity.

“Business with which a Board member or relative is associated” means any private business or closely held corporation of which a Board member or relative is a director, officer, owner, employee or agent or any private business or closely held corporation in which a Board member or relative owns or has owned stock, another form of equity interest, stock options or debt instruments worth \$1,000 or more at any point in the preceding year; any publicly held corporation in which a Board member or relative owns or has owned \$100,000 or more in stock or another form of equity interest, stock options or debt instruments at any point in the preceding calendar year; or any publicly held corporation of which a Board member or relative is a director or officer.

“Relative” means: the Board member’s spouse¹, parent, step-parent, child, sibling, step-sibling, son-in-law or daughter-in-law of the Board member; or the parent, step-parent, child, sibling, step-sibling, son-in-law or daughter-in-law of the spouse of the Board member. Relative also includes any individual for whom the Board member has a legal support obligation, whose employment provides benefits² to the Board member, or who receives any benefit from the Board member’s public position.

¹ The term spouse includes domestic partner.

² Examples of benefits may include, but not be limited to, elements of an official compensation package including benefits such as insurance, tuition or retirement allotments.

“Member of the household” means any person who resides with the public official.

No Board member will solicit or receive, either directly or indirectly, any pledge or promise of future employment based on any understanding that the Board member’s vote, official action or judgment would be thereby influenced.

No Board member will attempt to use or use for personal gain any confidential information gained through their official position or association with HCCS. A Board member will respect individuals’ privacy rights when dealing with confidential information gained through association with HCCS.

If a Board member participates in the authorization of a public contract, the Board member may not have a direct beneficial financial interest in that public contract for two years after the date the contract was authorized.

Individual Board members and the HCCS Board as a public entity are bound by the ethics laws for public officials as stated in Oregon law.

Potential Conflict of Interest

“Potential conflict of interest” means any action or any decision or recommendation by a Board member that could result in a financial benefit or detriment for self or relatives or for a business with which the Board member or relatives are associated, unless otherwise provided by law.

A Board member must publicly declare a potential conflict of interest. A Board member may, after declaring a potential conflict of interest, either vote or abstain on the issue. Abstaining from a vote does not meet the legal requirement of publicly stating a potential conflict.

Actual Conflict of Interest

“Actual conflict of interest” means any action or any decision or recommendation taken by a Board member that would result in a financial benefit or detriment to self or relatives or for any business with which the Board member or relatives are associated, unless otherwise provided by law.

A Board member must publicly declare an actual conflict of interest. The Board member may not vote lawfully if an actual conflict of interest exists unless a vote is needed to meet a minimum requirement of votes to take official action. Such a vote does not allow the Board member to participate in any discussion or debate on the issue out of which an actual conflict arises.

II. Gifts

Board members are public officials and therefore will not solicit or accept a gift or gifts with an aggregate value in excess of \$50 from any single source in a calendar year that has a legislative or administrative interest in any matter subject to the decision or vote of the Board member. All gift related provisions apply to the Board member, their relatives, and members of their household. The \$50 gift limit applies separately to the Board member, and to the Board member’s relatives or members of their household, meaning that the Board member, each member of their household and relative can accept up to \$50 each from the same source/gift giver. “Gift” means something of economic value given to a Board member without valuable consideration of equivalent value, which is not extended to others who are not public officials on the same terms and conditions.

“Relative” means: the spouse³, parent, step-parent, child, sibling, step-sibling, son-in-law or daughter-in-law of the Board member; or the parent, step-parent, child, sibling, step-sibling, son-in-law or daughter-in-law of the spouse of the Board member. Relative also includes any individual for whom the Board member has a legal support obligation, whose employment provides benefits⁴ to the Board member, or who receives any benefit from the Board member’s public employment.

“Member of the household” means any person who resides with the Board member.

Determining the Source of Gifts

Board members should not accept gifts in any amount without obtaining information from the gift giver as to who is the source of the gift. It is the Board member’s personal responsibility to ensure that no single source provides gifts exceeding an aggregate value of \$50 in a calendar year, if the source has a legislative or administrative interest in any matter subject to the decision or vote of the Board member. If the giver does not have a legislative/administrative interest, the ethics rules on gifts do not apply and the Board member need not keep track of it, although they are advised to do so anyway in case of a later dispute.

Determining Legislative and Administrative Interest

A legislative or administrative interest means an economic interest distinct from that of the general public, in any action subject to the decision or vote of a person acting in the capacity of a Board member. For example, everyone within a county has a general interest in the fire department, but the person who sells the uniforms to the fire department has a legislative/administrative interest in the fire department that is distinct from the general public.

Determining the Value of Gifts

The fair market value of the merchandise, goods, or services received will be used to determine benefit or value.

“Fair market value” is the dollar amount goods or services would bring if offered for sale by a person who desired, but was not obligated, to sell and purchased by one who is willing, but not obligated, to buy. Any portion of the price that was donated to charity, however, does not count toward the fair market value of the gift if the Board member does not claim the charitable contribution on personal tax returns. Below are acceptable ways to calculate the fair market value of a gift:

1. In calculating the per person cost at receptions or meals the payor of the Board member’s admission or meal will include all costs other than any amount donated to a charity.

For example, a person with a legislative or administrative interest buys a table for a charitable dinner at \$100 per person. If the cost of the meal was \$25 and the amount donated to charity was \$75, the benefit conferred on the Board member is \$25. This example requires that the Board member does not claim the charitable contribution on personal tax returns.

³ Ibid. p. 1

⁴ Ibid. p. 1

2. For receptions and meals with multiple attendees, but with no price established to attend, the source of the Board member's meal or reception will use reasonable methods to determine the per person value or benefit conferred. The following examples are deemed reasonable methods of calculating value or benefit conferred:
 - a. The source divides the amount spent on food, beverage and other costs (other than charitable contributions) by the number of persons whom the payor reasonably expects to attend the reception or dinner;
 - b. The source divides the amount spent on food, beverage and other costs (other than charitable contributions) by the number of persons who actually attend the reception or dinner; or
 - c. The source calculates the actual amount spent on the Board member.
3. Upon request by the Board member, the source will give notice of the value of the merchandise, goods, or services received.
4. Attendance at receptions where the food or beverage is provided as an incidental part of the reception is permitted without regard to the fair market value of the food and beverage provided.

Value of Unsolicited Tokens or Awards: Resale Value

Board members may accept unsolicited tokens or awards that are engraved or are otherwise personalized items. Such items are deemed to have a resale value under \$25 (even if the personalized item cost the source more than \$50), unless the personalized item is made from gold or some other valuable material that would have value over \$25 as a raw material.

Entertainment

Board members may not solicit or accept any gifts of entertainment over \$50 in value from any single source in a calendar year that has a legislative or administrative interest in any matter subject to the decision or vote of the Board member unless:

1. The entertainment is incidental to the main purpose of another event (i.e. a band playing at a reception). Entertainment that involves personal participation is not incidental to another event (such as a golf tournament at a conference); or
2. The Board member is acting in their official capacity for a ceremonial purpose.

Entertainment is ceremonial when a Board member appears at an entertainment event for a "ceremonial purpose" at the invitation of the source of the entertainment who requests the presence of the Board member at a special occasion associated with the entertainment. Examples of an appearance by a Board member at an entertainment event for a ceremonial purpose include throwing the first pitch at a baseball game, appearing in a parade and ribbon cutting for an opening ceremony.

Exceptions

The following are exceptions to the ethics rules on gifts:

1. Campaign contributions are not considered gifts under the ethics rules;

2. Gifts from “relatives” and “members of the household” to the Board member are permitted in an unlimited amount; they are not considered gifts under the ethics rules;
3. Informational or program material, publications, or subscriptions related to the recipient’s performance of official duties;
4. Contributions made to a legal expense trust fund if certain requirements are met;
5. Food, lodging, and travel generally count toward the \$50 aggregate amount per year from a single source with a legislative/administrative interest, with the following exceptions:
 - a. Organized Planned Events. Board members are permitted to accept payment for travel conducted in the Board member’s official capacity, for certain limited purposes:
 - (1) Reasonable expenses (i.e., food, lodging, travel, fees) for attendance at a convention, fact-finding mission or trip, or other meeting do not count toward the \$50 aggregate amount IF:
 - (a) The Board member is scheduled to deliver a speech, make a presentation, participate on a panel, or represent HCCS; AND
 - (i) The giver is a unit of a:
 - 1) Federal, state, or local government;
 - 2) An Oregon or federally recognized Native American Tribe; OR
 - 3) Nonprofit corporation.
 - (b) The Board member is representing HCCS:
 - (i) On an officially sanctioned trade-promotion or fact-finding mission; OR
 - (ii) Officially designated negotiations or economic development activities *where receipt of the expenses is approved in advance by the Board.*
 - (2) The purpose of this exception is to allow Board members to attend organized, planned events and engage with the members of organizations by speaking or answering questions, participating in panel discussions or otherwise formally discussing matters in their official capacity. This exception to the gift definition does not authorize private meals where the participants engage in discussion.
 6. Food or beverage, consumed at a reception, meal, or meeting IF held by an organization and IF the Board member is representing HCCS. Again, this exception does not authorize private meals where the participants engage in discussion.

“Reception” means a social gathering. Receptions are often held for the purpose of extending a ceremonial or formal welcome and may include private or public meetings during which guests are honored or welcomed. Food and beverages are often provided, but not as a plated, sit-down meal;

7. Food or beverage consumed by Board member acting in an official capacity in the course of financial transactions between the public body and another entity described in ORS 244.020(7)(b)(I)(i);

8. Waiver or discount of registration expenses or materials provided to Board member at a continuing education event that the Board member may attend to satisfy a professional licensing requirement;
9. A gift received by the Board member as part of the usual or customary practice of the Board member's private business, employment or position as a volunteer that bears no relationship to the Board member's holding of public office.

Honoraria

A Board member may not solicit or receive, whether directly or indirectly, honoraria for the Board member or any relative or member of the household of the Board member if the honoraria are solicited or received in connection with the official duties of the Board member.

The honoraria rules do not prohibit the solicitation or receipt of an honorarium or a certificate, plaque, commemorative token, or other item with a value of \$50 or less; or the solicitation or receipt of an honorarium for services performed in relation to the private profession, occupation, avocation, or expertise of the Board member or candidate.

END OF POLICY

Legal Reference(s):

[ORS 244.010](#) to -244.400

[OAR 199-005-0001](#) to -199-010-0150

38 OR. ATTY. GEN. OP. 1995 (1978)

OR. ETHICS COMM'N, OR. GOV'T ETHICS LAW, A GUIDE FOR PUBLIC OFFICIALS.

Cross Reference(s):

BBF - Board Member Standards of Conduct

BBFB - Board Member Ethics and Nepotism

DJ - Purchasing



Code: BBFB
Adopted: 7/21/21

Board Member Ethics and Nepotism

In order to avoid both potential and actual conflicts of interests, Board members will abide by the following rules when a Board member's relative or member of the household is seeking and/or holds a position with the HCCS:

1. A Board member may not appoint, employ, promote, discharge, fire, or demote or advocate for such an employment decision for a relative or member of the household, unless the Board member complies with the conflict of interest requirements of Oregon Revised Statute (ORS) Chapter 244.

This policy does not apply to decisions regarding unpaid volunteer positions unless it is a Board member position or another Board-related unpaid volunteer position (i.e. a Board committee position).

2. A Board member may not participate as a public official in any interview, discussion, or debate regarding the appointment, employment, promotion, discharge, firing, or demotion of a relative or member of the household. A Board member may still serve as a reference or provide a recommendation.

For the purposes of this policy:

“Member of the household” means any person who resides with the Board member.

“Relative” means: the spouse¹, parent, step-parent, child, sibling, step-sibling, son-in-law or daughter-in-law of the Board member; or the parent, step-parent, child, sibling, step-sibling, son-in-law or daughter-in-law of the spouse of the Board member. Relative also includes any individual for whom the Board member has a legal support obligation, whose employment provides benefits² to the Board member, or who receives any benefit from the Board member's public employment.

END OF POLICY

Legal Reference(s):

[ORS 244.010](#) to -244.400

[ORS 659A.309](#)

[OAR 199-005-0001](#) to -199-010-0150

OR. ETHICS COMM'N, OR. GOV'T ETHICS LAW, A GUIDE FOR PUBLIC OFFICIALS.

Cross Reference(s):

BBFA - Board Member Ethics and Conflicts of Interest

¹ The term spouse includes domestic partner.

² Examples of benefits may include, but not be limited to, elements of an official compensation package including benefits such as insurance, tuition or retirement allotments.



Code: BBFC
Adopted: 7/21/21

Reporting of Suspected Abuse of a Child

A Board member is a mandatory reporter of child abuse. A Board member having reasonable cause to believe that any child with whom the Board member comes in contact with has suffered abuse or that any person with whom the Board member comes in contact with has abused a child shall immediately notify the Oregon Department of Human Services (DHS) or local law enforcement pursuant to Oregon Revised Statute (ORS) 419B.015.

The Board member making a report of child abuse, as required by ORS 419B.010, shall make an oral report by telephone or otherwise to the local office of the Department of Human Services, to the designee of the department or to a law enforcement agency within the county where the Board member making the report is located at the time of the contact.

The report shall contain, if known: the names and addresses of the child and the parents of the child or other persons responsible for the care of the child; the child's age; the nature and extent of the abuse, including any evidence of previous abuse; the explanation given for the abuse; and any other information that the Board member making the report believes might be helpful in establishing the cause of the abuse and the identity of the perpetrator.

END OF POLICY

Legal Reference(s):

[ORS 338.115](#)

[ORS 419B.005](#)

[ORS 419B.010](#)

[ORS 419B.015](#)

[Senate Bill 415 \(2019\)](#)

Cross Reference(s):

BBF - Board Member Standards of Conduct



Code: BBF
Adopted: 7/21/21

Board Member Standards of Conduct

Individual HCCS Board members and the Board as a public entity, must comply with the ethics laws for public officials.

Board members will treat other Board members, the administrator/principal, staff and the public with dignity and courtesy and will provide an opportunity for all parties to be heard with due respect for their opinions.

Board members will recognize the administrator/principal as the chief executive officer to whom the Board has delegated administrative authority to establish regulations and oversee the implementation of Board policy.

When a Board member expresses personal opinions in public, the Board member should clearly identify the opinions as personal.

A Board member will respect the privacy rights of individuals when dealing with confidential information gained through association with the HCCS.

A Board member will keep information and documents discussed in an executive session, confidential.

A Board member will not post confidential information or documents about students, staff or school business online, including but not limited to, on social media.

Board members will treat fellow other Board members, staff, students and the public with respect while posting online or to social media and will adhere to Oregon Public Meetings Laws, including when communicating with other Board members via websites or other electronic means.

A HCCS Board member is a mandatory reporter of child abuse. A Board member having reasonable cause to believe that any child with whom the Board member comes in contact with has suffered abuse or that any person with whom the Board member comes in contact with has abused a child shall immediately make an oral report by telephone or otherwise to the local Department of Human Services, to the designee of the department or to a local law enforcement within the county where the person making the report is located at the time of contact.

END OF POLICY

Legal Reference(s):

[ORS 192.610 - 192.710](#)
[ORS Chapter 244](#)
[ORS 338.115\(2\)](#)

[ORS 419B.005](#)
[ORS 419B.010](#)
[ORS 419B.015](#)

[Senate Bill 415 \(2019\)](#)

Cross Reference(s):

BBFA - Board Member Ethics and Conflicts of Interest
BBFC - Reporting of Suspected Abuse of a Child
GBI - Gifts and Solicitations



Code: BD/BDA
Adopted: 7/21/21

Board Meetings

The HCCS Board has the authority to act only when a quorum is present at a duly called regular, special or emergency meeting. “Meeting” means the convening of a quorum of the Board as the HCCS’s governing body to make a decision or to deliberate toward a decision on any matter. This includes meeting for the purpose of gathering information to serve as the basis for a subsequent decision or recommendation by the governing body, i.e. a work session. The affirmative vote of a majority of those present is required to transact any business.

All regular, special and emergency meetings of the Board will be open to the public except as provided by law. All meetings will be conducted in compliance with state and federal statutes. All Board meetings, including Board retreats and work sessions, will be held within the territory of the Beaverton School District. The Board may attend training sessions outside these boundaries but cannot deliberate or discuss HCCS business.¹ No meeting will be held at any place where discrimination on the basis of disability, race, creed, color, sex, sexual orientation², age or national origin is practiced.

The Board will give public notice reasonably calculated to give actual notice to interested persons, including those with disabilities, of the date, time and place for all Board meetings and of the principal subjects to be considered. The Board may consider additional subjects at a meeting, even if they were not included in the notice.

If requested to do so at least 48 hours before a meeting held in public, the Board shall make a good faith effort to provide an interpreter for hearing-impaired persons. Other appropriate auxiliary aids and services will be provided upon request and appropriate advance notice. Communications with all qualified individuals with disabilities shall be as effective as communications with others.

All meetings held in public shall comply with the Oregon Indoor Clean Air Act and the smoking provisions contained in the Public Meetings Law.

The possession of dangerous or deadly weapons and firearms, as defined in law and Board policy, is prohibited on HCCS property.

¹ ORS 192.630(4). Meetings of the governing body of a public body shall be held within the geographic boundaries over which the public body has jurisdiction, or at the administrative headquarters of the public body or at the other nearest practical location. Training sessions may be held outside the jurisdiction as long as no deliberations toward a decision are involved.

² As defined in ORS 174.100.

1. Regular, Special and Emergency Meetings

Generally, a regular Board meeting will be held each month. The regular meeting schedule will be established at the regular annual meeting held no later than July and may be changed by the Board with proper notice. The purpose of each regular monthly meeting will be to conduct the regular Board business.

At the regular annual meeting, the HCCS Board may elect Board officers according to HCCS bylaws.

Special meetings can be convened by the Board chair or upon request of 20 percent of Board members then in office. A special meeting may also be scheduled if less than a quorum is present at a meeting or additional business still needs to be conducted at the ending time of the meeting. At least 24 hours' notice must be provided to all Board members in accordance with HCCS bylaws, the news media, which have requested notice, and the general public for any special meeting.

Emergency meetings can be called by the Board in the case of an actual emergency upon appropriate notice under the circumstances. The minutes of the emergency meeting must describe the emergency. Only topics necessitated by the emergency may be discussed or acted upon at the emergency meeting.

2. Communications Outside of Board Meetings

Communications, to, by and among a quorum of Board members outside of a legally called Board meeting, in their capacity as Board members, shall not be used for the purpose of discussing HCCS business. This includes electronic communication. Electronic communications among Board members shall be limited to messages not involving deliberation, debate, decision-making or gathering of information on which to deliberate.

Electronic communications may contain:

- a. Agenda item suggestions;
- b. Reminders regarding meeting times, dates and places;
- c. Board meeting agendas or information concerning agenda items;
- d. One-way information from Board members or the administrator/principal to each Board member (e.g., an article on student achievement or to share a report on HCCS progress on goals) so long as that information is being made available to the public;
- e. Individual responses to questions posed by community members, subject to other limitations in Board policy.

3. Private or Social Meetings

Private or social meetings of a quorum of the Board for the purpose of making a decision or to deliberate toward a decision on any matter are prohibited by the Public Meetings Law.

4. Work Sessions

The Board may use regular or special meetings for the purpose of conducting work sessions to provide its members with opportunities for planning and thoughtful discussion. Work sessions will

be conducted in accordance with the state law on public meetings, including notice and minutes. The Board is discouraged from making official decisions during a work session.

5. Executive Sessions

Executive sessions may be held during regular, special or emergency meetings for a reason permitted by law. (See Board policy BDC - Executive Sessions)

END OF POLICY

Legal Reference(s):

[ORS 174.100](#)

[ORS 174.104](#)

[ORS Chapter 192](#)

[ORS Chapter 193](#)

[ORS 255.335](#)

[ORS 338.115\(2\)](#)

[ORS 433.835 to -433.875](#)

38 OR. ATTY. GEN. OP. 1995 (1978)

41 OR. ATTY. GEN. OP. 28 (1980)

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213; 29 C.F.R. Part 1630 (2006); 28 C.F.R. Part 35).

Americans with Disabilities Act Amendments Act of 2008.

OR. ATTY. GEN. Public Records and Meetings Manual (2014).

Cross Reference(s):

ACA - Americans with Disabilities Act

BDC - Executive Sessions



Code: BDC
Adopted: 7/21/21

Executive Sessions

The HCCS Board may meet in executive session to discuss subjects allowed by statute but may not take final action except for the expulsion of a student and matters pertaining to or examination of the confidential records of the student.

An executive session may be convened by order of the Board chair, upon request of 20 percent of HCCS Board members then in office or by common consent of the Board for a purpose authorized under Oregon Revised Statute (ORS) 192.660 during a regular, special or emergency meeting. The presiding officer will announce the executive session by identifying the authorization under ORS 192.660 for holding such session and by noting the subject of the executive session.

The Board may hold an executive session:

1. To consider the employment of a public officer, employee, staff member or individual agent. (ORS 192.660(2)(a))
2. To consider the dismissal or disciplining of, or to hear complaints or charges brought against, a public officer, employee, staff member or individual agent who does not request an open hearing. (ORS 192.660(2)(b))
3. To conduct deliberations with persons designated by the governing body to carry on labor negotiations. (ORS 192.660(2)(d))
4. To conduct deliberations with persons designated by the governing body to negotiate real property transactions. (ORS 192.660(2)(e))
5. To consider information or records that are exempt by law from public inspection. (ORS 192.660(2)(f))
6. To consult with counsel concerning the legal rights and duties of a public body with regard to current litigation or litigation likely to be filed. (ORS 192.660(2)(h))
7. To review and evaluate the employment-related performance of the chief executive officer of any public body, a public officer, employee or staff member who does not request an open hearing. (ORS 192.660(2)(i))
8. To consider matters relating to school safety or a plan that responds to safety threats made toward a school. (ORS 192.660(k))

9. To review the expulsion of a minor student from a public elementary or secondary school. (ORS 332.061(1)(a))
10. To discuss matters pertaining to or examination of the confidential records of a student. (ORS 332.061(1)(b))

Members of the press may attend executive sessions except those matters pertaining to:

1. Deliberations with persons designated by the Board to carry on labor negotiations;
2. Hearings on the expulsion of a minor student or examination of the confidential records of a student; and
3. Current litigation or litigation likely to be filed if the member of the news media is a party to the litigation or is an employee, agent or contractor of a news media organization that is a party to the litigation.

If an executive session is held pursuant to ORS 332.061, the following shall not be made public: the name of the minor student; the issue, including the student's confidential records; the discussion; and each Board member's vote on the issue.

Minutes shall be kept for all executive sessions.

Content discussed in executive sessions is confidential.

END OF POLICY

Legal Reference(s):

[ORS 192.660](#)

[ORS 338.115](#)

Cross Reference(s):

BD/BDA - Board Meetings

BDDG - Minutes of Board Meetings

CBG - Evaluation of the Administrator/Principal



Code: BDDC
Adopted: 7/21/21

Board Meeting Agenda

The Board chair, with the assistance of the administrator/principal, will prepare an agenda for all regular meetings of the Board. Items of business may be suggested by any Board member, staff member, student or person of the HCCS community by notifying the HCCS Board (board@hopeccs.org) at least seven working days prior to the meeting.

A consent agenda may be used by the Board for noncontroversial business. The consent agenda will consist of routine business that requires action but not necessarily discussion. These items may all be approved at the same time. A Board member may ask that any item be removed from the consent agenda. The removed item will then be placed on the regular agenda.

The agenda will follow a general order established by the Board. Opportunities for the audience to be heard may be included on the agenda. The Board will follow the order of business set up by the agenda unless the order is altered by a consensus of the Board.

Items of business not on the agenda may be discussed and acted upon if the majority of the Board agrees to consider them.

The agenda, together with supporting materials, will be distributed by the HCCS office or administrator/principal to Board members at least two full working days prior to the meeting. The agenda will be available to the press and to interested patrons through the school office at the same time it is available to the Board members. Copies of the agenda for the press and public will not contain any confidential information included in the Board members' packets.

A copy of the agenda will be posted on the school website on the day of the meeting. Members of the public may request a copy of the agenda through the school office.

The HCCS will ensure equally effective communications are provided to qualified persons with disabilities, upon request¹, as required by the Americans with Disabilities Act. Auxiliary aids and services for persons with disabilities will be available at no charge to the individual.

END OF POLICY

¹ Appropriate auxiliary aids and services may include, but are not limited to, qualified interpreters, assistive listening systems, note takers, large print, Braille materials, audio recordings and readers. Primary consideration will be given to the requests of the person with a disability in the selection of the appropriate auxiliary aid and/or service. Should the Board demonstrate such request would result in a fundamental alteration in the service, program or activity or an undue financial and administrative burden, an alternate, equally effective communication will be used.

Legal Reference(s):

[ORS 192.630](#)

[ORS 192.640](#)

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213; 29 C.F.R. Part 1630 (2006); 28 C.F.R. Part 35 (2006).
Americans with Disabilities Act Amendments Act of 2008.

Cross Reference(s):

BDDG - Minutes of Board Meetings

BDDH - Public Comment at Board Meetings



Code: BDDG
Adopted: 7/21/21

Minutes of Board Meetings

The HCCS Board secretary will take written minutes of all Board meetings. The written minutes will be a true reflection of the matters discussed at the meeting and the views of the participants. The minutes will include, but not be limited to, the following information:

1. All members of the Board who were present;
2. All motions, proposals, resolutions, orders and measures proposed and their disposition;
3. The results of all votes and the vote of each member by name;
4. The substance of any discussion on any matter;
5. Any other information required by law.

All minutes shall be available to the public within a reasonable time. The public and patrons of the HCCS may receive, upon request, copies of minutes from the school office. A copy of the minutes of each regular and special Board meeting as they are drafted for approval will be distributed after such meeting to each Board member and administrator.

The HCCS will maintain a hard copy¹ of the meeting minutes and make them available to staff and other interested patrons.

Minutes of executive sessions will be kept in accordance with the requirements of Oregon's Public Meetings Law with essentially the same level of detail as for public sessions. If disclosure of material in the executive session minutes would be inconsistent with the purpose for which executive session was held under Oregon Revised Statute (ORS) 192.660, the material may be withheld from disclosure.

If an executive session is held pursuant to ORS 332.061, the following shall not be made public: the name of a minor student; the issue, including a student's confidential records; the discussion; and each Board member's vote on the issue.

END OF POLICY

Legal Reference(s):

[ORS 192.610 - 192.710](#)

[ORS 338.115\(2\)](#)

Letter Opinion, Office of the OR Attorney General (Nov. 20, 1970).

¹ Oregon Administrative Rule 166-400-0010(9)



Code: BDDH-AR
Revised/Reviewed: 7/21/21

Public Comment at Board Meetings

The Board requests that a public comment add information or a perspective that has not already been mentioned previously, and that the patron refrains from repeating a similar point.

To make a comment or present a topic during public comment, if the opportunity is available on the Board agenda, please complete the Intent to Speak card and submit it to the HCCS Board (board@hopeccs.org) prior to the start of public comment. An individual that has submitted an Intent to Speak card and has been invited to speak by the Board chair, will be allowed two minutes.

Any person, who is invited by the Board chair to speak to the Board during a meeting, should state their name and, if speaking for an organization, the name of the organization. A spokesperson should be designated to represent a group with a common purpose.

Please keep in mind that reference to a specific employee or group of employees, is prohibited as follows: Board policy BDDH - Public Comment at Board Meetings:

“Comments Regarding Staff Members -

Speakers may offer objective criticism of school operations and programs. The Board will not hear comments regarding any individual school staff member. The Board chair will direct the visitor to the procedures in Board policy KL - Public Complaints for Board consideration of a legitimate complaint involving a staff member. A commendation involving a staff member should be sent to the administrator/principal.”

INTENT TO SPEAK

The Board welcomes your input. Please submit this completed card to the HCCS Board (board@hopeccs.org) prior the start of public comment.

Name: _____ Phone: _____
Address: _____
Email (optional): _____
Topic or comment to be presented (brief description): _____

A complaint brought before the Board shall be referred to the proper school authorities. A complaint shall be processed in accordance with Board policy KL - Public Complaints and KL-AR - Public Complaints Procedure. A hearing conducted before the Board regarding personnel shall take place in an executive session.

The Board requests that a topic or comment is limited to two minutes or less.



Code: BDDH
Adopted: 7/21/21

Public Comment at Board Meetings

All HCCS Board meetings, with the exception of executive sessions, will be open to the public. The Board invites school community members to attend Board meetings to become acquainted with the program and operation of the HCCS. Members of the public also are encouraged to share their ideas and opinions with the Board when appropriate.

It is the intent of the HCCS Board to ensure communications with individuals with disabilities are as effective as communications with others. Individuals with hearing, vision or speech impairments will be given an equal opportunity to participate in Board meetings. Primary consideration will be given to requests of qualified individuals with disabilities in selecting appropriate auxiliary aids¹ and services.

Auxiliary aids and services for persons with disabilities will be available at no charge to the individual. All auxiliary aids and/or service requests must be made with appropriate advance notice. Should the HCCS Board demonstrate such requests would result in a fundamental alteration in the service, program or activity or an undue financial and administrative burden, an alternative, equally effective means of communication will be used.

Audience

During a session of a HCCS Board meeting open to the public, members of the public may be invited to present comments during the designated portion of the agenda. At the discretion of the Board chair, further public comment may be allowed.

Request for an Item on the Agenda

A member of the public may request the Board chair consider placing an item on the agenda of a regular public charter board meeting. This request should be made in writing (may include email) and presented to the Board chair for consideration at least seven working days prior to the scheduled meeting.

Procedures for Public Comment at Meetings

The HCCS Board will establish procedures for public comment in open meetings. The purpose of these procedures will be to inform the public how to effectively participate in Board meetings for the best interests of the individual, the school and the patrons. The information will be easily accessible and available to all patrons attending a HCCS Board meeting.

1. Discussion or presentation concerning a published agenda item is limited to its designated place on the agenda, unless otherwise authorized by the Board chair.
2. A visitor, when invited, speaking during the meeting may introduce a topic not on the published agenda. The HCCS Board, at its discretion, may require that a proposal, inquiry or request be

¹ “Auxiliary aids” may include, but are not limited to, such services and devices as qualified interpreters, assistive listening systems, note takers, readers, taped texts, Brailled materials and large print.

submitted in writing, and reserves the right to refer the matter to the administrator/principal for action or study.

3. Any person who is invited by the Board chair to speak to the Board during a meeting should state their name and, if speaking for an organization, the name and identity of the organization. A spokesperson should be designated to represent a group with a common purpose.
4. Statements by members of the public should be brief and concise. The Board chair may use discretion to establish a time limit on discussion or oral presentation by visitors.
5. Questions asked by the public, when time provided, may be answered by the Board chair or referred to the administrator/principal for reply. Questions requiring investigation may, at the discretion of the Board chair, be referred to the administrator/principal for a response at a later time.
6. At the discretion of the HCCS Board chair, anyone wishing to speak before the Board, either as an individual or as a member of a group, on any agenda item or other topic, may do so by providing the HCCS Board secretary with a completed registration card or sign-in sheet, prior to the Board meeting in order to allow the chair to provide adequate time for each agenda item.

Petitions

Petitions may be accepted at any HCCS Board meeting. No action will be taken in response to a petition before the next regular meeting. Petitions will be referred to the administrator/principal for consideration and recommendation if necessary.

Comments Regarding Staff Members

Speakers may offer objective criticism of HCCS operations and programs. The Board will not hear comments regarding any individual HCCS staff member. The Board chair will direct the visitor to the procedures in Board policy KL - Public Complaints for Board consideration of a legitimate complaint involving a staff member. A commendation involving a staff member should be sent to the administrator/principal.

END OF POLICY

Legal Reference(s):

[ORS 192.610](#) to -192.690

[ORS 338.115\(2\)](#)

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213 (2012); 29 C.F.R. Part 1630 (2017); 28 C.F.R. Part 35 (2017).

Americans with Disabilities Act Amendments Act of 2008.

Baca v. Moreno Valley Unified Sch. Dist., 936 F. Supp. 719 (C.D. Cal. 1996).

Leventhal v. Vista Unified Sch. Dist., 973 F. Supp. 951 (S.D. Cal. 1997).

Cross Reference(s):

BDDC - Board Meeting Agenda



Code: BDD
Adopted: 7/21/21

Board Meeting Procedures

1. Quorum

A quorum will consist of the majority of the Board members.

2. Vote Needed for Exercise of Powers

The affirmative vote of a majority of Board members present will be necessary for exercising any of the Board's powers.

3. Board Member Voting

Each member's vote on all motions will be recorded in the minutes.

4. Abstaining from Vote

If a Board member chooses to abstain from voting, and the abstention is due to a conflict of interest, the Board members will state the reason for the abstention and such abstention will be recorded.

5. Parliamentary Procedure

Official Board business will be transacted by motion or resolution at duly called regular or special meetings.

Except as otherwise provided by state law and/or Board policy, the rules of parliamentary procedure comprised in *Robert's Rules of Order Newly Revised*, "*Procedure in Small Boards*" as modified by the Board will govern the Board in its deliberation.

The Board chair will decide all questions relative to points of order, subject to an appeal to the Board.

END OF POLICY

Legal Reference(s):

[ORS 192.650](#)

[ORS 244.120\(2\)](#)

[ORS 338.115\(2\)](#)

38 OR. ATTY. GEN. OP. 1995 (1978)

41 OR. ATTY. GEN. OP. 28 (1980)



Code: BFCA
Adopted: 7/21/21

Administrative Regulations (AR)

Administrative regulations are detailed directions governing the operation of the HCCS.

The administrator/principal or designee is authorized to formulate such administrative regulations appropriate for the implementation of policies adopted by the Board and necessary for the consistent operation of the HCCS.

When approved by the administrator/principal, administrative regulations shall be distributed to the Board and the staff as appropriate.

The Board may review any administrative regulation and may direct its revision if, in the Board's judgment, such administrative regulation is not consistent with adopted board policies.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(2\)](#)



Code: BFC
Adopted: 7/21/21

Adoption and Revision of Policies

Board policies will be subject to alteration, addition or deletion upon majority vote of the Board at any regular or special meeting in which all members have been notified in writing of the proposed alteration, addition or deletion at least 24 hours in advance. In most cases, a first reading of the policy will be scheduled on a regular meeting agenda prior to its adoption at a subsequent regular or special meeting.

The formal adoption of policies will be recorded in the Board minutes. Only those written statements so adopted and so recorded will be regarded as official Board policy.

When additions, deletions or amendments are made to Board policy, the addition, deletion or amendment will carry the adoption date and the corrected copy will be published at the earliest opportunity.

To permit time for studying new policies or amendments to policies and to provide an opportunity for interested parties to react, proposed policies or amendments may be presented as a Board agenda item in the following sequence:

1. First reading of a proposed policy (or policies): This is an information item and no action is required by the Board. A first reading announces that a new policy, a revision of an existing policy or consideration to rescind a policy, is being considered by the Board. Comments, questions, concerns and recommended edits should be forwarded to the administrator/principal or designee for consideration prior to the meeting in which the policy is recommended for a second reading and/or adoption.
2. Second reading/Adoption of a proposed policy (or policies): This is an action by the Board and may be placed on the consent agenda. Any revisions to a policy from the first reading will not require the policy go through an additional reading, except as the Board determines that the revision(s) need(s) further study and an additional reading would be advantageous.

When, in the best interest of HCCS, immediate adoption of a proposed policy is necessary, the Board may adopt such policy at the first meeting in which it is presented.

The operation of any single policy, section or sections of policies not established by law may be temporarily suspended by a majority vote of the Board member's present at a regular or special meeting.

The policy manual will be regularly reviewed to keep it current.

END OF POLICY

Legal Reference(s):

[ORS 338.115\(2\)](#)



Code: BHD
Adopted: 7/21/21

Board Member Compensation and Expense Reimbursement

No Board member will receive any compensation for services other than reimbursement for approved expenses actually incurred on HCCS business. Such expenses may include the cost of attendance at meetings, conferences or visitations when such attendance has been approved by the Board.

END OF POLICY

Legal Reference(s):

[ORS 244.020](#)
[ORS 244.040](#)

[ORS 332.018\(3\)](#)
[ORS 338.115\(2\)](#)

OR. GOV'T STANDARDS AND PRACTICES COMM'N, STAFF OPINION 02S-015 (May 20, 2002).
OR. GOV'T STANDARDS AND PRACTICES COMM'N, STAFF OPINION 03S-015 (Sept. 11, 2003).

Cross Reference(s):

BBAA - Individual Board Member's Authority and Responsibilities
DLC - Expense and Tuition Reimbursements



Code: BHE
Adopted: 7/21/21

Board Member Liability Insurance

HCCS will purchase liability insurance and errors-and-omissions insurance to protect its school board members individually and collectively from claims made against them as a result of official Board actions taken in the course of official duties.

END OF POLICY

Legal Reference(s):

[ORS 30.260 to -30.300](#)

[ORS 338.115\(2\)](#)